SL. No.2

NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH

COURT HALL NO: II

Hearing Through: VC and Physical (Hybrid) Mode

CORAM: SHRI.MOHAN PRASAD TIWARI– HON'BLE MEMBER (J)
CORAM: SHRI. SANJAY PURI - HON'BLE MEMBER (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, HYDERABAD BENCH, HELD ON 23.07.2025 at 10:25 AM

TRANSFER PETITION NO.	
COMPANY PETITION/APPLICATION NO.	**CA (CAA) No.30/230/2025**
NAME OF THE COMPANY	**Sequent Scientific Ltd (Amalgamated Co.) and Symed Labs Ltd (Transferor Co.1) and Vandana Life Sciences Pvt Ltd (Transferor Co.2) and Appcure Labs Pvt Ltd (Transferor Co.3) and Vindhya Pharma (India) Pvt Ltd (Transferor Co.4) and S.V. Labs Ltd (Transferor Co.5) and Vindhya Organics Pvt Ltd (Transferor Co.6) and Viyash Life Sciences Pvt Ltd (Transferee Co.1) and Geninn Life Sciences Pvt Ltd (Transferee Co.2) and Sequent Research Ltd (Amalgamating Co.2)**
NAME OF THE PETITIONER(S)	
NAME OF THE RESPONDENT(S)	
UNDER SECTION	**230 of Companies Act**

ORDER

Orders pronounced, recorded vide separate sheets. In the result, this CA (CAA) No.30/230/2025 is allowed and disposed of.

Sd/-
MEMBER (T)

Sd/-
MEMBER (J)

Apoorva

IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH -II, HYDERABAD

CA (CAA) No.30/230/HDB/2025

IN THE MATTER OF SECTION 230 TO 232 OF THE COMPANIES ACT, 2013 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013 READ WITH COMPANIES (COMPROMISES, ARRANGEMENTS AND AMALGAMATION) RULES, 2016

And

IN THE MATTER OF COMPOSITE SCHEME OF AMALGAMATION AMONGST

M/S.SEQUENT SCIENTIFIC LIMITED
(APPLICANT COMPANY 1/AMALGAMATED COMPANY)

AND

M/S.SYMED LABS LIMITED
(APPLICANT COMPANY 2/TRANSFEROR COMPANY 1)

AND

M/S.VANDANA LIFE SCIENCES PRIVATE LIMITED
(APPLICANT COMPANY 3/TRANSFEROR COMPANY 2)

AND

M/S.APPCURE LABS PRIVATE LIMITED
(APPLICANT COMPANY 4/TRANSFEROR COMPANY 3)

AND

M/S.VINDHYA PHARMA (INDIA) PRIVATE LIMITED
(APPLICANT COMPANY 5/TRANSFEROR COMPANY 4)

AND

M/S.S.V.LABS PRIVATE LIMITED
(APPLICANT COMPANY 6/TRANSFEROR COMPANY 5)

AND

M/S.VINDHYA ORGANICS PRIVATE LIMITED
(APPLICANT COMPANY 7/TRANSFEROR COMPANY 6)

AND

M/S.VIYASH LIFE SCIENCES PRIVATE LIMITED
(APPLICANT COMPANY 8/TRANSFEREE COMPANY 1/AMALGAMATING COMPANY 1)

AND

M/S.GENIN LIFE SCIENCES PRIVATE LIMITED
(APPLICANT COMPANY 9/TRANSFEREE COMPANY 2/ TRANSFEROR COMPANY 7)

AND

M/S.SEQUENT RESEARCH LIMITED
(APPLICANT COMPANY 10/AMALGAMATING COMPANY 2)

AND

THEIR RESPECTIVE SHAREHOLDERS

C.A. (CAA) No.30/230/HDB/2025
Date of Order: 23/07/2025

M/s.SEQUENT SCIENTIFIC LIMITED,
(CIN:L99999TS1985PLC196357)
Registered Office at 3rd Floor,
Srivallis Corporate, Plot No.290,
SYN 33 34 PTO 39, Guttala Begumpet,
Jubilee Hills, Hyderabad,
Shaikpet, Telangana – 500 033.
(Represented by Mr.Rajaram Narayanan, Authorised Signatory)

...Applicant Company 1/Amalgamated Company

M/s.SYMED LABS,
(CIN:U24231TG1998PLC029961)
Registered Office at Plot No.290,
Srivallis Corporate, Road No.6,
Kakatiya Hills, Madhapur,
Hyderabad, Telangana – 500 081.
(Represented by Ms.Janaki Aasani, Authorised Signatory)

...Applicant Company 2/Transferor Company 1

M/s.VANDANA LIFE SCIENCES PRIVATE LIMITED,
(CIN:U24239TG2002PTC040132)
Registered Office at Plot No.290,
Srivallis Corporate, Road No.6,
Kakatiya Hills, Madhapur,
Hyderabad, Telangana – 500 081.
(Represented by Ms.Janaki Aasani, Authorised Signatory)

...Applicant Company 3/Transferor Company 2

M/s.APPCURE LABS PRIVATE LIMITED,
(CIN:U24232TG2012PTC084625)
Registered Office at Plot No.89/A,
Sy.311/5 Phase – 1, Medchal,
Malkajgiri, IDA Jeedimetla, Hyderabad,
Telangana – 500 055.
(Represented by Mr.Ramakant Singani, Authorised Signatory)

...Applicant Company 4/Transferor Company 3

M/s.VINDHYA PHARMA (INDIA) PRIVATE LIMITED,
(CIN:U24296TG2006PTC050700)

C.A. (CAA) No.30/230/HDB/2025
Date of Order: 23/07/2025

Registered Office at Plot No.290,
Srivallis Corporate, Road No.6,
Kakatiya Hills, Madhapur,
Hyderabad, Telangana – 500 081.
(Represented by Mr.Ramakant Singani, Authorised Signatory)

...Applicant Company 5/Transferor Company 4

M/s.S.V.LABS PRIVATE LIMITED,
(CIN:U24239TG2003PTC041662)
Registered Office at Plot No.290,
Srivallis Corporate, Road No.6,
Kakatiya Hills, Madhapur,
Hyderabad, Telangana – 500 081.
(Represented by Ms.Janaki Aasani, Authorised Signatory)

...Applicant Company 6/Transferor Company 5

M/s.VINDHYA ORGANICS PRIVATE LIMITED,
(CIN:U24110TG1988PTC008252)
Registered Office at Plot No.3,4 &5,
Anrich Industrial Estate,
Bollaram, Telangana – 502 325.
(Represented by Ms.Janaki Aasani, Authorised Signatory)

...Applicant Company 7/Transferor Company 6

M/s.VIYASH LIFE SCIENCES PRIVATE LIMITED,
(CIN:U24239TG2019PTC130774)
Registered Office at Plot No.290,
Srivallis Corporate, Road No.6,
Kakatiya Hills, Madhapur,
Hyderabad, Telangana – 500 081.
(Represented by Mr.Ramakant Singani, Authorised Signatory)

...Applicant Company 8/Transferee Company 1/Amalgamating Company 1)

M/s.GENINN LIFE SCIENCES PRIVATE LIMITED,
(CIN:U24299TG2019PTC136520)
Registered Office at Plot No.3,4 &5,
Anrich Industrial Estate,

C.A. (CAA) No.30/230/HDB/2025
Date of Order: 23/07/2025

Bollaram, Medak,
Hyderabad, Telangana – 502 325.
(Represented by Mr.Ramakant Singani, Authorised Signatory)

...Applicant Company 9/Transferee Company 2/Transferor Company 7

M/s.SEQUENT RESEARCH LIMITED,
(CIN:U24232TS2007PLC196886)
Registered Office at 3rd Floor,
Srivallis Corporate, Plot No.290,
SYN 33 34P TO 39, Guttala Begumpet,
Jubilee Hills, Hyderabad,
Shaikpet, Telangana – 500 033.
(Represented by Mr.Rajaram Narayanan, Authorised Signatory)

...Applicant Company 10/Amalgamated Company 2
(Together called as "Applicant Companies")

Further, Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 together called as **"Transferor Companies",** Amalgamating Company 1 and Amalgamating Company 2 together called as **"Amalgamating Companies".**

Date of Order: 23.07.2025

Coram:

Sri Mohan Prasad Tiwari, Hon'ble Member (Judicial)
Sri Sanjay Puri, Hon'ble Member (Technical)

Counsel present:

For the Applicants : Mr.R.Inbaraju, Advocate

[P E R : B E N C H]

O R D E R

I. This Application is filed under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamation) rules, 2016 in the matter of Composite Scheme of Amalgamation amongst Sequent Scientific Limited (Applicant Company 1/Amalgamated Company) and Symed Labs Limited (Applicant Company 2/Transferor Company 1) and Vandana Life Sciences Private Limited (Applicant Company 3/Transferor Company 2) and Appcure Labs Private Limited (Applicant Company

4/Transferor Company 3) and Vindhya Pharma (India) Private Limited (Applicant Company 5/Transferor Company 4) and S.V.Labs Private Limited (Applicant Company 6/Transferor Company 5) and Vindhya Organics Private Limited (Applicant Company 7/Transferor Company 6) and Viyash Life Sciences Private Limited (Applicant Company 8/Transferee Company 1/Amalgamating Company 1) and Geninn Life Sciences Private Limited (Applicant Company 9/Transferee Company 2/ Transferor Company 7) and Sequent Research Limited (Applicant Company 10/Amalgamating Company 2) and their respective Shareholders and Creditors ("Applicant Companies") under section 230 to 232 of Companies Act, 2013 with effect from the Appointed Date. The Applicant Company 10/ Amalgamating Company 2 (together called as "Applicant Companies") and further, Transferor Company 1, Transferor Company 2, Transferor Company 3, Transferor Company 4, Transferor Company 5 together called as **"Transferor Companies",** Amalgamating Company 1 and Amalgamating Company 2 together called as **"Amalgamating Companies".**

II. This Joint Application is filed by the Applicant Companies under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 for approval of the Composite Scheme of Amalgamation between the Applicant Companies and their respective shareholders and creditors and seeking the following reliefs/orders:

i. Dispensation of the Meeting of Equity Shareholders of the Applicant Company 2/Transferor Company 1, Applicant Company 3/Transferor Company 2, Applicant Company 4/Transferor Company 3, Applicant Company 5/ Transferor Company 4, Applicant Company 6/Transferor Company 5, Applicant Company 7/Transferor Company 6 and Applicant Company 10/ Amalgamating Company 2.

ii. Dispensation of the Meeting of Preference Shareholders of the Applicant Company 6/Transferor Company 5.

iii. Dispensation of the meeting of Secured Creditors of the Applicant Company 1/Amalgamated Company, Applicant Company 2/Transferor Company 1, Applicant Company 3/Transferor Company 2, Applicant Company

6/Transferor Company 5, Applicant Company 7/Transferor Company 6 and Applicant Company 8/Transferee Company 1/Amalgamating Company 1.

iv. Dispensation of the meeting of Unsecured Loan Creditors of the Applicant Company 1/Amalgamated Company, Applicant Company 6/Transferor Company 5 and Applicant Company 9/Transferee Company 2/Transferor Company 7.

v. Convening the meeting of Equity Shareholders of all Classes, as applicable of the Applicant Company 1/Amalgamated Company, Applicant Company 8/ Transferee Company 1/Amalgamating Company 1 and Applicant Company 9/ Transferee Company 2/Transferor Company 7.

vi. Convening the meeting of Unsecured Trade Creditors of the Applicant Company 1/Amalgamated Company, Applicant Company 2/Transferor Company 1, Applicant Company 4/Transferor Company 3, Applicant Company 8/Transferee Company 1/Amalgamating Company 1 and Applicant Company 10/Amalgamating Company 2.

vii. For publication of Notices in the Newspaper for convening and holding of the meetings in "Business Standard" English Newspaper and "Andhra Jyothi" (Telugu) Vernacular Newspaper, in case, the Hon'ble Tribunal has passed an order for convening the meeting.

viii. For service of Notices to the Statutory authorities as may be ordered by this Hon'ble Tribunal as per the provisions of Section 230(5) of the Companies Act, 2013 and Rule 8 of Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

ix. To fix the Quorum for Equity Shareholders Meeting of Applicant Company 1, Applicant Company 8 and Applicant Company 9, Unsecured Trade Creditors Meetings of Applicant Company 1, Applicant Company 2, Applicant Company 4, Applicant Company 8 and Applicant Company 10 and the procedure to be followed for such meeting.

x. For Appointment of Chairperson and Scrutinizer for Equity Shareholders Meeting of Applicant Company 1, Applicant Company 8 and Applicant Company 9; Unsecured Trade Creditors Meetings of Applicant Company 1, Applicant Company 2, Applicant Company 4, Applicant Company 8 and

Applicant Company 10 to be held, including the terms of appointment and remuneration for the Chairperson and Scrutinizer.

xi. Issuing direction for permitting the filing of application, petition and other documents as may be required, for the purpose of sanctioning the proposed Composite Scheme of Amalgamation amongst Sequent Scientific Limited (Applicant Company 1/Amalgamated Company) and Symed Labs Limited (Applicant Company 2/Transferor Company 1) and Vandana Life Sciences Private Limited (Applicant Company 3/Transferor Company 2) and Appcure Labs Private Limited (Applicant Company 4/Transferor Company 3) and Vindhya Pharma (India) Private Limited (Applicant Company 5/Transferor Company 4) and S.V. Labs Private Limited (Applicant Company 6/Transferor Company 5) and Vindhya Organics Private Limited (Applicant Company 7/Transferor Company 6) and Viyash Life Sciences Private Limited (Applicant Company 8/Transferee Company 1/Amalgamating Company 1) and Geninn Life Sciences Private Limited (Applicant Company 9/Transferee Company 2/Transferor company 7) and Sequent Research Limited (Applicant Company 10/Amalgamating Company 2) and their respective Shareholders and Creditors ("Composite Scheme").

xii. To fix a date for presentation of the Company Petition and pass such other order or orders as this Hon'ble National Company Law Tribunal, Hyderabad Bench may deem fit and proper in the circumstances of the case and render justice.

III. DETAILS OF APPLICATION:

A. Particulars of the Applicant Company 1/Amalgated Company:

1) **Sequent Scientific Limited** (hereinafter referred to as Applicant Company 1/Amalgamated Company) a Public Limited Company, was originally incorporated on 28th June, 1985 under the provisions of Companies Act, 1956 under the name "Visistha Trades and Finance Limited" under the Registrar of Companies, Mumbai. Subsequently, the Company changed its name to "P.I. Drugs and Pharmaceuticals Limited" effective from 25th March, 2004. Finally, the Company changes its name to **"Sequent Scientific Limited"** w.e.f., from 27th October, 2009.

2) It is submitted that the Equity Shares of the Applicant Company 1/Amalgamated Company got listed on Bombay Stock Exchange Limited

(BSE) on 10th September, 1990 and National Stock Exchange of India Limited **(NSE)** on 10th March, 2016. Subsequent to the listing of Equity Shares, the CIN changed to L99999MH1985PLC036685.

3) The Registered Office of the Company was shifted from the State of Maharashtra to the State of Telangana with Corporate Identification Number (CIN) L99999TS1985PLC196357 and is presently situated at 3rd Floor, Srivallis Corporate, Plot No. 290, SYN 33 34 PTO 39, Guttala Begumpet, Jubilee Hills, Hyderabad, Shaikpet, Telangana, 500033.
(Certified copies of the Certificate of Incorporation and fresh certificate of incorporation pursuant to the change in name and address of the Applicant Company 1/Amalgamated Company are at Annexure 1 of the Application).

4) The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 1/Amalgamated Company as on 31st March, 2025 is as follows:

Authorized Share Capital	**Amount (Rs.)**
40,00,00,000 equity shares of Rs. 2/- each	80,00,00,000
T o t a l	**80,00,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
25,03,01,995 equity shares of Rs.2/- each	50,06,03,990
To t a l	**50,06,03,990**

Subsequent to 31st March, 2025 till the date of filing of this application, there has been no change in the share capital structure of the Applicant Company 1/Amalgamated Company.

5) **<u>Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 1/Amalgamated Company</u>**:

a) The Applicant Company 1/Amalgamated Company has only 1,58,152 Equity Shareholders as on 31st March, 2025.
(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders as on 31st March, 2025 is at Annexure 74 of the Application)

b) The Applicant Company 1/Amalgamated Company has one Secured Creditor amounting to Rs.21,17,10,374/- as on 31st March, 2025. The Secured Creditor has given his consent in writing to the Scheme and also to dispense with convening the meeting of the Secured Creditors.
(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 and consent letter are at Annexure 75 & 76 of the Application).

c) The Applicant Company 1/Amalgamated Company has one Unsecured Loan Creditor amounting to Rs.24,11,55,344/- as on 31st March, 2025. The Unsecured Loan Creditor has given his consent in writing to the Scheme and also to dispense with convening the meeting of the Unsecured Loan Creditor.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 and consent letter are at Annexure 77 & 78 of the Application).

d) The Applicant Company 1/Amalgamated Company has also submitted that it has 210 Unsecured Trade Creditor amounting to Rs.21,92,13,907/- as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Unsecured Trade Creditors as on 31st March, 2025 and consent letter is at Annexure 79 of the Application).

6) The Applicant Company 1/Amalgamated Company was incorporated for carrying on the business as set out in the main objects, *inter alia,* given below:

a) To carry on the business of manufacturers, processors, producers, makers, Importers, exporters, buyers, sellers, suppliers, stockists, agents, merchants, distributors and concessionaries of all or any kinds of drugs, medicines, chemicals, Formulation preparation of Ectoparaciticide, Pesticides, Fungicides, Weedicides, medical plants and all types of plantations, mixtures, powder, tablets, capsules, injections, oil compounds, creams, scents, glycerine, detergent, glue, gelatin, scaps, lotions, toilet goods, pigments and all kinds of pharmaceuticals, cosmetics and medicinal goods, pigments and all kinds of pharmaceuticals, cosmetic and medical preparations required or used for beauty aid, personal hygiene or in allopathic, ayurvedic homeopath, unanl or nature cure methods or system of treatments, bandages, cotton, gauzes, crutches, stretchers and all kinds of anatomical, orthopaedic and surgical appliances and stores including prophylactics.

b) To carry on the business as programmer, developers, consultants and developers, advisors on information /Internet system and purveyors of information services, remote processing services, software development

and marketing, telecommunications support, systems and network integration and implementation and internet services and to promote encourage, establish, develop, maintain, organize, undertake, manage, operate, conduct and to run in India or abroad internet/ computer training centres, data processing centres, call centres and provide computer consultancy, software consultancy, hardware consultancy and other activities through Internet and also to provide market and product service through internet, provide the solution and to set up web site and carry on e-commerce activities like manufacturing, trading, selling, marketing of various products and all sorts of services through Internet for industrial, commercial, domestic, medical, pharmaceuticals, healthcare, public utility and other general customers for various sections of society.

(Certified copy of Memorandum of Association and Articles of Association of the Applicant Company 1/Amalgamated Company are at Annexure 2 of the Application).

7) It is submitted that a list of the present Board of Directors of the Applicant Company 1/Amalgamated Company is at **Annexure 3 of the Application.**

8) It is submitted that a copy of Audited Financial Statements of the Applicant Company 1/Amalgamated Company as on 31st March, 2024 is at **Annexure 4 of the Application**.

9) It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 and 2025 of the Applicant Company 1/Amalgamated Company is at **Annexure 5 of the Application.**

B. **Particulars of the Applicant Company 2/Transferor Company 1:**

1. **Symed Labs Limited** (hereinafter referred to as Applicant Company 2/Transferor Company 1) a Public Limited Company, was originally incorporated on 17th August, 1988. "Symed Labs Private Limited" under the Registrar of Companies, Hyderabad. Subsequently, with effect from 08th June, 2001 the class of the Company changed from Private to Public as Symed Labs Limited with Corporate Identification Number (CIN) U24231TG1998PLC029961.

(Certified true Copies of the Certificate of Incorporation and fresh Certificate of Incorporation pursuant to the Conversion of Company are at Annexure 6 of the Application).

2. The Registered Office of the Applicant Company 2/Transferor Company 1 is situated at Plot No. 290, Srivallis Corporate, Road No.6, Kakatiya Hills, Madhapur, Hyderabad, Shaikpet, Telangana, 500081.

3. The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 2/Transferor Company 1 as on 31st March, 2025 is as follows:

Authorized Share Capital	**Amount (Rs.)**
20,00,000 equity shares of Rs.10/- each	2,00,00,000
T o t a l	**2,00,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
9,30,100 equity shares of Rs.10/- each	93,01,000
To t a l	**93,01,000**

Subsequent to 31st March, 2025 till the date of filing of this application, there has been no change in the share capital structure of the Applicant Company 2/Transferor Company 1.

4. **<u>Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 2/Transferor Company 1</u>**:

a) The Applicant Company 2/Transferor Company 1 has 7 (seven) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.

(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders and consent letter as on 31st March, 2025 is at Annexure 80 & 81 of the Application)

b) The Applicant Company 2/Transferor Company 1 has one Secured Creditor amounting to Rs.20,73,71,057/- as on 31st March, 2025. The Secured Creditor has given its consent in writing to the Scheme and also to dispense with convening the meeting of the Secured Creditor.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors and consent letter as on 31st March, 2025 is at Annexure 82 & 83 of the Application)

c) The Applicant Company 2/Transferor Company has NIL Unsecured Loan Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 is at Annexure 84 of the Application).

d) The Applicant Company 2/Transferor Company 1 has 452 Unsecured Trade Creditors amounting to Rs.1,02,69,32,052/- as on 31st March, 2025.
(Certificate issued by Chartered Accountant certifying the list of Unsecured Trade Creditors as on 31st March, 2025 is at Annexure 85 of the Application).

5. The Applicant Company 2/Transferor Company 1 was incorporated for carrying on the business as set out in the, main objects, *inter alia,* given below:

a) To carry on the business of manufactures, buy, sell, import, export and generally deal in all types of Pharmaceuticals, Drugs and intermediaries.

b) To carry on the research and developmental activities to develop new products and substitute for imported products for own use and for others and to develop and maintain testing house and laboratory for own use and for others.

c) To carry on the business of Consulting Engineers in Chemicals, Pharmaceutical and Dyestuff industries.

(Certified copies of Memorandum of Association and Articles of Association of the Applicant Company 2/Transferor Company 1 are at Annexure 7 of the Application).

5) It is submitted that a list of the present Board of Directors of the Applicant Company 2/Transferor Company 1 is at **Annexure 8 of the Application.**

6) It is submitted that a copy of Audited Financial Statements of the Applicant Company 2/Transferor Company 1 as on 31st March, 2024 is at **Annexure 9 of the Application**.

7) It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 and 2025 of the Applicant Company 2/Transferor Company 1 is at **Annexure 10 of the Application**.

C. **<u>Particulars of the Applicant Company 3/Transferor Company 2:</u>**

C.A. (CAA) No.30/230/HDB/2025
Date of Order: 23/07/2025

1. **Vandana Life Sciences Private Limited** (hereinafter referred to as Applicant Company 3/Transferor Company 2) a private limited Company, was originally incorporated on 18th December, 2022, under the provisions of Companies Act, 1956 under the name and style of "Ahlada Pharma Private Limited" under the Registrar of Companies, Hyderabad. Subsequently, the Company changed its name to "Vandana Life Sciences Private Limited" effective 10th December, 2010 with Corporate Identification Number (CIN) U24239TG2002PTC040132.
(Copies of the Certificate of Incorporation and fresh certificate of incorporation pursuant to change of name of Applicant Company 3/Transferor Company 2 are at Annexure 11 of the Application).

2. The Registered Office of the Applicant Company 3/Transferor Company 2 is presently situated at Plot No.290, Srivalli's Corporate, Road No.6, Kakatiya Hills, Madhapur, Rangareddi, Hyderabad, Telangana, 500081.

3. The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 3/Transferor Company 2 as on 31st March, 2025 is as follows:

Authorized Share Capital	**Amount (Rs.)**
24,00,000 Equity Shares of Rs. 10/- each	2,40,00,000
T O T A L	**2,40,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
18,55,000 Equity Shares of INR Rs. 10/- each	1,85,50,000
T O T A L	**1,85,50,000**

Subsequent to 31st March, 2025, till the date of filing of this application before this Hon'ble Tribunal, there has been no change in the Share Capital Structure of the Applicant Company 3/Transferor Company 2.

4. **<u>Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 3/Transferor Company 2</u>**:

a) The Applicant Company 3/Transferor Company 2 has 2 (two) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.

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(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders and consent letter as on 31st March, 2025 is at Annexure 86 & 87 of the Application)

b) The Applicant Company 3/Transferor Company 2 has 1(one) Secured Creditor amounting to Rs.26,35,00,000/- as on 31st March, 2025. The Secured Creditor has given its consent in writing to the Scheme and also to dispense with convening the meeting of the Secured Creditor.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors and consent letter as on 31st March, 2025 is at Annexure 88 & 89 of the Application)

c) The Applicant Company 3/Transferor Company 2 has NIL Unsecured Loan Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 is at Annexure 90 of the Application).

d) The Applicant Company 3/Transferor Company 2 has 12 (twelve) Unsecured Trade Creditors amounting to Rs.74,51,572/- as on 31st March, 2025. 8 Unsecured Creditors with 92.77% amounting to Rs.69,13,017/- have given their consent to the Scheme and also to dispense with the convening of the Unsecured Trade Creditors.

(Certificate issued by Chartered Accountant certifying the list of Unsecured Trade Creditors as on 31st March, 2025 and consent letter is at Annexures 91 & 92 of the Application).

5. The Applicant Company 3/Transferor Company 2 was incorporated for carrying on the business as set out in the, main objects, *inter alia*, given below:

   a) To carry on the business of processing, converting, producing, manufacturing, formulating, using, buying, acquiring, storing, packaging, selling, transporting, distributing, importing, exporting, and disposing of or otherwise dealing in all kinds of drugs, pharmaceuticals, intermediates for drugs and pharmaceuticals, alkaloids, vitamins, antibiotics, fine chemicals, hormones, medicinal, bacteriological, biological, immunological, and other chemical preparations, including sera, vaccines, and veterinary drugs.

   b) To carry out the business of manufacturing, selling, buying, importing, exporting, distributing, stocking, or otherwise dealing in all kinds of drugs and pharmaceutical formulations, including all

types of vitamins, antibiotics, organic and inorganic chemicals, TB drugs, anti-malarial, antidiabetic, anticancer, antifungal drugs, and other drugs. This includes all kinds of alkaloids and formulations such as tablets, liquids, capsules, injections, ointments, and their allied products, derivatives, and byproducts. For this purpose, the Company may enter into technical collaborations, royalty agreements, actual user agreements, concession agreements, or any other agreements with foreign and Indian parties.

c) To carry on the business of manufacturing drugs on a loan license basis.

(Certified copies of Memorandum of Association and Articles of Association of the Applicant Company 3/Transferor Company 2 are at Annexure 12 of the Application).

6. It is submitted that the present list of Board of Directors of the Applicant Company 3/Transferor Company 2 is at **Annexure 13 of the Application**.

7. It is submitted that a copy of Audited Financial Statements of the Applicant Company 3/Transferor Company 2 as on 31st March, 2024 is at **Annexure 14 of the Application**.

8. It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 and 2025 of the Applicant Company 3/Transferor Company 2 is at **Annexure 15 of the Application.**

D. **Particulars of the Applicant Company 4/Transferor Company 3:**

1. **Appcure Labs Private Limited** (hereinafter referred to as 'Applicant Company 4/Transferor Company 3') a private limited Company was incorporated on 5th December, 2012 under the provisions of Companies Act, 1956, under the Registrar of Companies, Hyderabad with Corporate Identification Number (CIN) U24232TG2012PTC084625.

   (Certified copy of the Certificate of Incorporation of the Applicant Company 4/ Transferor Company 3 is enclosed as Annexure 16 of the Application).

2. The Registered Office of the Applicant Company 4/Transferor Company 3 is presently situated at 89/A, Sy. 311/5 Phase 1, Medchal, Malkajgiri, IDA Jeedimetla, Hyderabad, Telangana, 500055.

3. The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 4/Transferor Company 3 as on 31st March, 2025 is as follows:

Authorized Share Capital	**Amount (Rs.)**
10,00,000 Equity Shares of Rs. 10/- each	1,00,00,000
T O T A L	**1,00,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
5,18,000 Equity Shares of INR Rs. 10/- each	51,80,000
T O T A L	**51,80,000**

Subsequent to 31st March, 2025, till the date of filing of this application before this Hon'ble Tribunal, there has been no change in the Share Capital Structure of the Applicant Company 4/Transferor Company 3.

4. **Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 4/Transferor Company 3**:

a) The Applicant Company 4/Transferor Company 3 has 2 (two) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.
(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders and consent letter as on 31st March, 2025 is at Annexure 93 & 94 of the Application)

b) The Applicant Company 4/Transferor Company 3 has NIL Secured Creditors and Unsecured Creditors as on 31st March, 2025.
(Certificates issued by Chartered Accountant certifying the list of Secured Creditors and Unsecured Creditors as on 31st March, 2025 are at Annexure 95 & 96 of the Application).

c) The Applicant Company 4/Transferor Company 3 has 103 (one hundred three) Unsecured Trade Creditors amounting to Rs.3,23,64,062.20 as on 31st March, 2025.
(Certificates issued by Chartered Accountant certifying the list of Unsecured Trade Creditors as on 31st March, 2025 are at Annexures 97 of the Application).

5. The Applicant Company 4/Transferor Company 3 was incorporated for carrying on the business as set out in the main objects, *inter alia,* given below:

a) To carry on the business of manufacturing, exporting, importing, and trading bulk drugs and intermediates, as well as conducting testing, analysis, and quality assurance systems for various industrial, non-industrial, agricultural, and other materials, including drugs and pharmaceuticals, chemicals, fertilizers, pesticides, and oils. This also includes conducting microbiological, toxicological, and bioavailability studies and providing consultancy and training in these fields. For this purpose, the Company may establish laboratories and seek approval from appropriate authorities.

b) To set up and carry on the business of manufacturing, refining, processing, preparing, acquiring, buying, selling, importing, exporting, distributing, and dealing in all kinds of medicines, remedies, chemicals, vitamins, minerals, medical herbs, disinfectants, cosmetics, toilet preparations, laboratory and scientific preparations, and formulations for human, animal, poultry, aquamarine, and agricultural use.

c) To undertake testing, investigation, and research and development programs related to industries of all kinds and sizes, including basic industries, and to provide advice on the application of existing and new processes and methods. This also includes exploring opportunities for the expansion of industries for manufacturing new and varied products and ensuring better utilization of waste products.

(Certified copies of the Memorandum of Association and Articles of Association of the Applicant Company 4/Transferor Company 3 are at Annexure 17 of the Application).

6. It is submitted that a list of the present Board of Directors of the Applicant Company 4/Transferor Company 3 is at **Annexure 18 of the Application.**

7. It is submitted that a copy of Audited Financial Statements of the Applicant Company 4/Transferor Company 3 as on 31st March, 2024 is at **Annexure 19 of the Application**.

8. It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 and 2025 of the Applicant

Company 4/Transferor Company 3 is at **Annexure 20 of the Application**.

E. **Particulars of the Applicant Company 5/Transferor Company 4:**

1. **VINDHYA PHARMA (INDIA) PRIVATE LIMITED** (hereinafter referred to as Applicant Company 5/Transferor Company 4) a Private Limited Company, was incorporated on 24th July, 2006, under the provisions of Companies Act, 1956 under the Registrar of Companies, Hyderabad with Corporate Identification Number (CIN) U24296TG2006PTC050700.
   (Copy of the Certificate of Incorporation of Applicant Company 5/Transferor Company 4 is at **Annexure 21 of the Application).**

2. The Registered Office of the Applicant Company 5/Transferor Company 4 is presently situated at Plot No.290, Srivalli's Corporate, Road No.6, Kakatiya Hills, Madhapur, Rangareddi, Hyderabad, Telangana – 508 081.

3. The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 5/Transferor Company 4 as on 31st March, 2025 is as follows:

Authorized Share Capital	**Amount (Rs.)**
20,00,000 Equity Shares of Rs. 10/- each	2,00,00,000
T O T A L	**2,00,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
18,69,982 Equity Shares of Rs. 10/- each	1,86,99,820
T O T A L	**1,86,99,820**

Subsequent to 31st March, 2025, till the date of filing of this application, there has been no change in the Share Capital Structure of the Applicant Company 5/Transferor Company 4.

4. **Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 5/Transferor Company 4**:

   a) The Applicant Company 5/Transferor Company 4 has 2 (two) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.

(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders and consent letter as on 31st March, 2025 are at Annexure 98 & 99 of the Application)

b) The Applicant Company 5/Transferor Company 4 has NIL Secured Creditors and Unsecured Creditors as on 31st March, 2025.
(Certificates issued by Chartered Accountant certifying the list of Secured Creditors and Unsecured Creditors as on 31st March, 2025 are at Annexure 100 & 101 of the Application).

c) The Applicant Company 5/Transferor Company 4 has 15 (fifteen) Unsecured Trade Creditors amounting to Rs.4,20,15,742/- as on 31st March, 2025. Consent of 01(one) Unsecured Trade Creditor amounting to Rs.3,96,08,252/- (holding 94.27% value) for the Scheme and also to dispense with convening of the meeting of Unsecured Trade Creditors has been obtained)
(Certificates issued by Chartered Accountant certifying the list of Unsecured Trade Creditors and consent letter as on 31st March, 2025 are at Annexures 102 & 103 of the Application).

5. The Applicant Company 5/Transferor Company 4 was incorporated for carrying on the business as set out in the main objects, *inter alia*, given below:

a) To carry on the business as buyers, sellers, importers, exporters, traders, distributors, dealers, and manufacturers, and to act as commission agents in organic and inorganic chemicals, bulk drugs, drug intermediates, pharmaceutical formulations, pesticides, dyes, and dye intermediates, as well as to provide analytical services to other industries.

b) To establish and carry on business in India or elsewhere as a manufacturer, processor, importer, exporter, transporter, agent, broker, supplier, wholesaler, retailer, distributor, stockist, dealer, godown keeper, C&F agent, and del credere agent. This includes developing, undertaking, performing, and managing all types of job works related to bulk drugs, drug intermediates, other organic compounds, and pharmaceutical formulations, including syrups, tonics, tablets, capsules, parenterals, herbal, Ayurvedic, natural extracts, and medicinal preparations, whether on a conversion basis or otherwise.

c) To establish, operate, organize, and manage research and development facilities for the development of products and processes related to drugs, organic and inorganic intermediates, and formulations. Additionally, to buy, sell/, trade, and provide research services, including analytical and process improvement services.

(Certified copies of Memorandum of Association and Articles of Association of the Applicant Company 5/Transferor Company 4 are at Annexure 22 of the Application).

6. It is submitted that a list the present Board of Directors of the Applicant Company 5/Transferor Company 4 is at **Annexure 23 of the Application**.

7. It is submitted that a copy of Audited Financial Statements of the Applicant Company 5/Transferor Company 4 as on 31st March, 2024 is at **Annexure 24 of the Application**.

8. It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 of the Applicant Company 5/Transferor Company 4 is at **Annexure 25 of the Application**.

F. Particulars of the Applicant Company 6/Transferor Company 5:

1. **S.V. LABS PRIVATE LIMITED** (hereinafter referred to as Applicant Company 6/Transferor Company 5) a private limited Company, was incorporated on 10th September, 2003 under the provisions of Companies Act, 1956 under the Registrar of Companies, Hyderabad with Corporate Identification Number (CIN) U24239TG2003PTC041662.

   (Certified copy of Certificate of Incorporation of Applicant Company 6/Transferor Company 5 is at Annexure 26 of the Application).

2. The Registered Office of the Applicant Company 6/Transferor Company 5 is situated at Plot No.290, Srivalli's Corporate, Road No.6, Kakatiya Hills, Madhapur, Rangareddi, Hyderabad, Telangana, 500081.

3. The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 6/Transferor Company 5 as on March 31, 2025, is as follows:

Authorized Share Capital	**Amount (Rs.)**
61,00,000 Equity Shares of Rs. 10/- each	6,10,00,000

T O T A L	**6,10,00,000**
2,50,00,000 Preference Share of 10/- each	25,00,00,000
T O T A L	**31,10,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
60,38,600 Equity Shares of Rs. 10/- each	6,03,86,000
24,500,000 Preference shares of Rs. 10/- each	24,50,00,000
T O T A L	**30,53,86,000**

Subsequent to 31st March, 2025, till the date of filing of this application, there has been no change in the Share Capital Structure of the Applicant Company 6/Transferor Company 5.

4. **Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 6/Transferor Company 5**:

a) The Applicant Company 6/Transferor Company 5 has 2 (two) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.

(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders and consent letter as on 31st March, 2025 is at Annexure 104 & 105 of the Application)

b) The Applicant Company 6/Transferor Company 5 has 1 (one) Preference Shareholder as on 31st March, 2025. The Preference Shareholder has given his consent in writing to the Scheme and also to dispense with convening the meeting of the Preference Shareholder.

(Certificate issued by Chartered Accountant certifying the list of Preference Shareholder and consent letter as on 31st March, 2025 are at Annexure 106 & 107 of the Application)

c) The Applicant Company 6/Transferor Company 5 has 3 (three) Secured Creditors amounting to Rs.38,74,61,795/- as on 31st March, 2025. The Secured Creditors have given their consent in writing to the Scheme and to dispense with convening the meeting of the Secured Creditors.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors and consent letter as on 31st March, 2025 are at Annexure 108 & 109 of the Application)

d) The Applicant Company 6/Transferor Company 5 has 1 (one) Unsecured Creditors amounting to Rs.6,25,916/- as on 31st March, 2025. The Unsecured

Creditors has given his consent in writing to the Scheme and to dispense with convening the meeting of the Unsecured Creditors.

(Certificate issued by Chartered Accountant certifying the list of Unsecured Creditor and consent letter as on 31st March, 2025 are at Annexure 110 & 111 of the Application)

e) The Applicant Company 6/Transferor Company 5 has 259 Unsecured Trade Creditors amounting to Rs.1,33,13,91,151/- as on 31st March, 2025. 10 Unsecured Trade Creditors aggregating 90.72% value amounting to Rs.1,20,77,89,038/- have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Unsecured Trade Creditors.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditor and consent letter as on 31st March, 2025 are at Annexure 112 & 113 of the Application)

5. The Applicant Company 6/Transferor Company 5 was incorporated for carrying on the business as set out in the, main objects, inter alia, given below:

   a) To manufacture, sells, purchase, export, import deal in and acts as agent, distributors suppliers of chemicals used for manufacture of pharmaceuticals, drugs and enzymes. To manufacture, develop, convert sell, purchase, deal in, import, export all kinds of drugs and their by-products intermediates, derivatives, formulations and compounds.

   b) To carry on the business of manufacture, process, buy, sell, and deal in all kinds of medicines, medicinal preparations and bulk drugs, whatsoever and obtain patents for them.

   c) To carry on the research with fine chemicals, drug and dry intermediaries, APIs and related activity.

   (Copies of Memorandum of Association and Articles of Association of the Applicant Company 6/Transferor Company 5 are at Annexure 27 of the Application).

6. It is submitted that a list of the present Board of Directors of the Applicant Company 6/Transferor Company 5 is at **Annexure 28 of the Application.**

7. It is submitted that a copy of Audited Financial Statements of the Applicant Company 6/Transferor Company 5 as on 31st March, 2024 is at **Annexure 29 of the Application**.

8. It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 of the Applicant Company 6/Transferor Company 5 is at **Annexure 30 of the Application.**

G. Particulars of the Applicant Company 7/Transferor Company 6:

1. **VINDHYA ORGANICS PRIVATE LIMITED** (hereinafter referred to as Applicant Company 7/Transferor Company 6) a Private Limited Company, was originally incorporated on 29th January, 1988, under the provisions of Companies Act, 1956 under the Registrar of Companies, Hyderabad, with the name "Parsin Chemicals Private Limited". Subsequently, with effect from 28th November,1988, the Company changed from Private to Public as "Parsin Chemicals Limited". Further, the Company altered its name to "Vindhya Organics Limited" effective from 11th December, 2009. Finally, with effect from 04th February 2010, the Company changed from Public to Private as "Vindhya Organics Private Limited" with Corporate Identification Number (CIN) U24110TG1988PTC008252.
   (Copies of the Certificate of Incorporation and fresh Certificate of Incorporation pursuant to change of name and conversion of Applicant Company 7/Transferor Company 6 are at Annexure 31 of the Application).

2. The Registered Office of the Applicant Company 7/Transferor Company 6 is situated at Plot No. 3, 4 & 5, Anrich Industrial Estate, Bollaram, Telangana, 502325.

3. The Authorized, Subscribed, Issued and Paid-up Share Capital of the Applicant Company 7/Transferor Company 6 as on March 31, 2025, is as follows:

Authorized Share Capital	**Amount (Rs.)**
41,00,000 Equity Shares of Rs. 10/- each	4,10,00,000
T O T A L	**4,10,00,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (Rs.)**
40,57,548 Equity Shares of Rs. 10/- each	4,05,75,480
T O T A L	**4,05,75,480**

Subsequent to 31st March, 2025, till the date of filing of this application, there has been no change in the Share Capital Structure of the Applicant Company 7/Transferor Company 6.

4. **Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 7/Transferor Company 6**:

a) The Applicant Company 7/Transferor Company 6 has 2 (two) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.

(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders and consent letter as on 31st March, 2025 is at Annexure 114 & 115 of the Application)

b) The Applicant Company 7/Transferor Company 6 has 2 (two) Secured Creditors amounting to Rs.11,21,65,662.20 as on 31st March, 2025. The Secured Creditors have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Secured Creditor.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors and consent letter as on 31st March, 2025 are at Annexure 116 & 117 of the Application)

c) The Applicant Company 7/Transferor Company 6 has NIL Unsecured Loan Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors and consent letter as on 31st March, 2025 are at Annexure 118 of the Application)

d) The Applicant Company 7/Transferor Company 6 has 245 Unsecured Trade Creditors amounting to Rs.1,22,93,12,878/- as on 31st March, 2025. 93.82% of Unsecured Trade Creditors amounting to Rs.1,15,33,34,061/- have given their consent in writing to the Scheme and to also dispense with convening the meeting of the Unsecured Trade Creditors.

(Certificate issued by Chartered Accountant certifying the list of Unsecured Creditor and consent letter as on 31st March, 2025 are at Annexure 119 & 120 of the Application)

5. The Applicant Company 7/Transferor Company 6 was incorporated for carrying on the business as set out in the, main objects, inter alia, given below:

   a) To carry on the business of manufacturing, processing, importing, exporting, running, selling, or otherwise dealing in all types of chemicals, including heavy, fine, industrial, pharmaceutical, organic, inorganic, and aromatic chemicals. This also includes fermentation products, acids, alkalis, photographic chemicals, synthetic ammonia, chromates, textile chemicals, and other chemical varieties used in various industries.

   b) To carry on the business of manufacturing, processing, buying, selling, and dealing in all kinds of medicines, medicinal preparations, and drugs. This includes obtaining patents for them and undertaking their manufacture on a loan license basis.

   c) To manufacture, produce, refine, prepare, import, export, purchase, sell, and generally deal in all kinds of oils, oil products, oil seeds, and blends thereof. This also includes all related products, by-products, and intermediates such as fatty acids and their esters, glycerin, amines, nitrides, amides, polyamides, soaps, cosmetics, toilet preparations, emulsifiers, flotation agents, pharmaceutical preparations, animal feed, and fertilizers.

   d) To act as consulting chemists and chemical engineers, providing consultancy services for setting up various types of chemical plants.

   e) To act as dealers, distributors, and traders in all types of chemicals, including exporting them.

   f) To carry on the business of manufacturing and dealing in ion exchange resins, adhesive resins, and related raw materials.

   g) To carry on the business of tobacco processing, including curing, threshing, redrying, packing, warehousing, selling, buying, importing, and exporting. This extends to merchants, dealers, traders, buyers, and sellers of all varieties of tobacco and its products, whether manufactured or not, both within and outside India. The business also includes dealing in tobacco-related products such as cigars, pipe tobacco, white beedies,

cigarettes, snuff, zarda, matchboxes, pipes, tins, canisters, snuff merchants, snuff grinders, tobacco extractions, and other related items.

(Copies of Memorandum of Association and Articles of Association of the Applicant Company 7/Transferor Company 6 are at Annexure 32 of the Application).

6. It is submitted that a list of the present Board of Directors of the Applicant Company 7/Transferor Company 6 is at **Annexure 33 of the Application**.

7. It is submitted that a copy of Audited Financial Statements of the Applicant Company 7/Transferor Company 6 as on 31st March, 2024 is at **Annexure 34 of the Application**.

8. It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 of the Applicant Company 7/Transferor Company 6 is at **Annexure 35 of the Application**.

H. Particulars of the Applicant Company 8/Transferor Company 1/ Amalgamating Company 1:

1. **VIYASH LIFE SCIENCES PRIVATE LIMITED** (hereinafter referred to as Viyash/Applicant Company 8/Transferee Company 1/Amalgamating Company 1) a Private Limited Company, was incorporated on 21st February, 2019, under the provisions of Companies Act, 2013 under the Registrar of Companies, Hyderabad with Corporate Identification Number (CIN) U24239TG2019PTC130774.

(Copies of the Certificate of Incorporation of Applicant Company 8/Transferee Company 1/Amalgamating Company 1 are at Annexure 36 of the Application).

2. The Registered Office of the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 is situated at Plot No.290, Srivalli's Corporate, Road No.6, Kakatiya Hills, Madhapur, Rangareddi, Hyderabad, Telangana, India, 500081.

3. The Authorized, Subscribed, Issued and paid-up Share Capital of the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 as on March 31, 2025, is as follows:

Authorized Share Capital	**Amount (Rs.)**
46,52,52,000 Equity shares of Rs. 10/- each	4,65,25,20,000
*20,34,95,000 Preference shares of Rs. 10/- each	2,03,49,50,000

**1,00,00,000 Preference shares of Rs. 90/- each	90,00,00,000
T o t a l	**7,58,74,70,000**
Issued, subscribed and fully Paid-up Share Capital	**Amount (Rs.)**
31,57,73,941 Equity shares of Rs. 10/- each	315,77,39,410
*** 1,86,15,406 Equity shares of Rs. 10/- each	18,61,54,060
T o t a l	**3,34,38,93,470**

*** CCPS Series A2, ** CCPS Series B, *** Class B (84,30,550 Shares), Class C1 (65,29,469 Shares) & Class C2 (36,55,387 Shares)**

Subsequent to 31st March, 2025, till the date of filing of this application, there has been no change in the Share Capital Structure of the Applicant Company 8/Amalgamating Company 1.

4. **Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 8/Transferee Company 1/ Amalgamating Company 1**:

a) The Applicant Company 8/Transferee Company 1/Amalgamating Company 1 has 4 (four) classes of Equity Shareholders – 47 (forty seven) Ordinary class, 01 (one) Class B, 1(one) Class C1 and 01 (one) C2 Equity Shareholders as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders as on 31st March, 2025 are at Annexures 121, 122 & 124 respectively of the Application)

b) The Applicant Company 8/ Transferee Company 1/Amalgamating Company 1 has 1 (one) Secured Creditors amounting to Rs.52,30,25,019 as on 31st March, 2025. The Secured Creditor has given his consent in writing to the Scheme and also to dispense with convening the meeting of the Secured Creditor.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors and consent letter as on 31st March, 2025 are at Annexure 125 & 126 of the Application)

c) The Applicant Company 8/ Transferee Company 1/Amalgamating Company 1 has NIL Unsecured Loan Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 is at Annexure 127 of the Application)

d) The Applicant Company 8/Transferee Company 1/Amalgamating Company 1 has 447 Unsecured Trade Creditors amounting to Rs.51,90,19,661.07 as on 31st March, 2025.

C.A. (CAA) No.30/230/HDB/2025
Date of Order: 23/07/2025

(Certificate issued by Chartered Accountant certifying the list of Unsecured Creditor as on 31st March, 2025 is at Annexure 128 of the Application)

5. The Applicant Company 8/Transferee Company 1/Amalgamating Company 1 was incorporated for carrying on the business as set out in the, main objects, inter alia, given below:

   a) To manufacture, sale, purchase, deal in various pharmaceuticals products, bulk drugs, medicines, chemicals, raw materials, intermediates for various pharmaceutical products and to engage in business of health cares, life sciences, research and development, contract manufacturing in India and/or abroad.

   b) To manufacture, process, produce, assemble, distribute, buy, sell, import, export and deal in pharmaceuticals, drugs, chemicals, medicines, raw materials, intermediates, vaccines, tonics, enzymes, steroids, vitamins, hormones, antibiotics, antiseptics, disinfectants, veterinary medicines, poultry medicines, herbal products, their byproducts, intermediates, residues, mixtures, compounds, preparations, cosmetics, pesticides, medicinal components, injections, dye wares, cordials, liquors, restoratives, acids, surgical preparations, medical equipments, surgical equipments and other related equipments, used in all therapies of medical treatment and the other lifesaving equipments apparatus and medicinal equipments and to engage in the business of Healthcare, life sciences, research and development, contract manufacturing etc. in India and/or abroad.

   (Copies of Memorandum of Association and Articles of Association of the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 is at Annexure 37 of the Application).

6. It is submitted that a list of the present Board of Directors of the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 is at **Annexure 38 of the Application.**

7. It is submitted that a copy of Audited Financial Statements of the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 as on 31st March, 2024 is at **Annexure 39 of the Application**.

8. It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 of the Applicant Company 8/Transferee

Company 1/Amalgamating Company 1 is at **Annexure 40 of the Application.**

I. Particulars of the Applicant Company 9/Transferee Company 2/Transferor Company 7:

1) **GENINN LIFE SCIENCES PRIVATE LIMITED** (hereinafter referred to as Applicant Company 9/Transferee Company 2/Transferor Company 7) a Private Limited Company, was incorporated on 31st October, 2019, under the provisions of Companies Act, 2013 under the Registrar of Companies, Hyderabad with Corporate Identification Number (CIN) U24299TG2019-PTC136520.
(Copy of the Certificate of Incorporation of Applicant Company 9/Transferee Company 2/Transferor Company 7 is at Annexure 41 of the Application).

2) The Registered Office of the Applicant Company 9/Transferee Company 2/Transferor Company 7 is situated at Plot No. 3,4 & 5, Anrich Industrial Estate Bollaram, Medak, Hyderabad - 502325, Telangana.

3) The Authorized, Subscribed, Issued and paid-up Share Capital of the Applicant Company 9/Transferee Company 2/Transferor Company 7 as on March 31, 2025, is as follows:

Authorized Share Capital	**Amount (Rs.)**
1,00,000 Equity shares of Rs. 10/- each	10,00,000
T o t a l	**10,00,000**
Issued, subscribed and fully Paid-up Share Capital	**Amount (Rs.)**
1,00,000 Equity shares of Rs. 10/- each	10,00,000
T o t a l	**10,00,000**

Subsequent to 31st March, 2025, till the date of filing of this application, there has been no change in the Share Capital Structure of the Applicant Company 9/Transferee Company 2/Transferor Company 7.

4. **Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 9/Transferee Company 2/ Transferor Company 7**:

a) The Applicant Company 9/Transferee Company 2/Transferor Company 7 has 41 of Equity Shareholders as on 31st March, 2025.
(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders as on 31st March, 2025 is at Annexure 129 of the Application)

b) The Applicant Company 9/Transferee Company 2/Transferor Company 7 has NIL Secured Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 is at Annexure 130 of the Application)

c) The Applicant Company 9/Transferee Company 2/Transferor Company 7 has 1(one) Unsecured Loan Creditor amounting to Rs.57,00,00,000/- as on 31st March, 2025. The Unsecured Loan Creditor has given his consent in writing to the Scheme and also to dispense with convening the meeting of the Unsecured Loan Creditor

(Certificate issued by Chartered Accountant certifying the list of Unsecured Creditor as on 31st March, 2025 are at Annexure 131 & 132 of the Application)

d) Applicant Company 9/Transferee Company 2/Transferor Company 7 has 1 (one) 47 Unsecured Trade Creditors amounting to Rs.16,575/- as on 31st March, 2025. The Unsecured Trade Creditor has given his consent in writing to the Scheme and also to dispense with convening the meeting of the Unsecured Loan Creditor

(Certificate issued by Chartered Accountant certifying the list of Unsecured Trade Creditor and consent letter as on 31st March, 2025 are at Annexure 133 & 134 of the Application)

4) The Applicant Company 9/Transferee Company 2/Transferor Company 7 was incorporated for carrying on the business as set out in the, main objects, inter alia, given below:

a) To manufacture, sale, purchase, deal in various pharmaceuticals products, bulk drugs, medicines, chemicals, raw materials, intermediates for various pharmaceutical products and to engage in business of health cares, life sciences, research and development, contract manufacturing in India and/or abroad.

b) To manufacture, process, produce, assemble, distribute, buy, sell, import, export and deal in pharmaceuticals, drugs, chemicals, medicines, raw materials, intermediates, vaccines, tonics, enzymes, steroids, vitamins, hormones, antibiotics, antiseptics, disinfectants, veterinary medicines, poultry medicines, herbal products, their byproducts, intermediates, residues, mixtures, compounds, preparations, cosmetics, pesticides,

medicinal components, injections, dye wares, cordials, liquors, restoratives, acids, surgical preparations, medical equipments, surgical equipments and other related equipments, used in all therapies of medical treatment and the other life saving equipments apparatus and I medicinal equipments and to engage in the business of Healthcare, life sciences, research and development, contract manufacturing etc. in India and/or abroad.

(Copies of the Memorandum of Association and Articles of Association of the Applicant Company 9/Transferee Company 2/Transferor Company 7 are enclosed at Annexure 42 of the Application).

5) It is submitted that a list of the present Board of Directors of the Applicant Company 9/Transferee Company 2/Transferor Company 7 is at **Annexure 43 of the Application.**

6) It is submitted that a copy of Audited Financial Statements of the Applicant Company 9/Transferee Company 2/Transferor Company 7 as on 31st March, 2024 is at **Annexure 44 of the Application**.

7) It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 of the Applicant Company 9/Transferee Company 2/Transferor Company 7 is at **Annexure 45 of the Application.**

J. Particulars of the Applicant Company 10/Amalgamating Company 2

1) **SEQUENT RESEARCH LIMITED** (hereinafter referred to as Applicant Company 10/Amalgamating Company 2) a Private Limited Company, was originally incorporated on 13th April, 2007 under the provisions of Companies Act, 1956 under the Registrar of Companies, Karnataka under the name "Sequent Research Private Limited". Subsequently, with effect from 18th March, 2008, the Company changed from Private to Public as "Sequent Research Limited". Further, the Registered Office of the Company was shifted from the State of Karnataka to the State of Telangana with Corporate Identification Number (CIN) U24232TS2007PLC196886.

(Copy of the Certificate of Incorporation and fresh Certificate of Incorporation on conversion and address change of the Applicant Company10/Amalgamating Company 2 are at Annexure 46 of the Application).

2) The Registered Office of the Applicant Company 10/Amalgamating Company 2 is situated at 3rd Floor, Srivallis Corporate, Plot No. 290,

SYN 33 34P TO 39, Guttala Begumpet, JubileeHills, Hyderabad, Shaikpet, Telangana, 500033.

3) The Authorized, Subscribed, Issued and paid-up Share Capital of the Applicant Company 10/Amalgamating Company 2 as on March 31, 2025, is as follows:

Authorized Share Capital	**Amount (Rs.)**
47,00,000 equity shares of Rs.10/- each	4,70,00,000
T o t a l	4,70,00,000
Issued, subscribed and fully Paid-up Share Capital	**Amount (Rs.)**
44,10,000 equity shares of Rs.10/- each	4,41,00,000
T o t a l	**4,41,00,000**

Subsequent to 31st March, 2025, till the date of filing of this application, there has been no change in the Share Capital Structure of the Applicant Company 10/Amalgamating Company 2.

4) **<u>Details of Equity Shareholders, Secured Creditors, Unsecured Creditors of the Applicant Company 10/Amalgamating Company 2:</u>**

a) The Applicant Company 10/Amalgamating Company 2 has 7 (seven) Equity Shareholders as on 31st March, 2025. The Equity Shareholders have given their consent in writing to the Scheme and also to dispense with convening the meeting of the Equity Shareholders.

(Certificate issued by Chartered Accountant certifying the list of Equity Shareholders as on 31st March, 2025 and consent letter are at Annexure 135 & 136 of the Application)

b) The Applicant Company 10/Amalgamating Company 2 has NIL Secured Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 is at Annexure 137 of the Application)

c) The Applicant Company 10/Amalgamating Company 2 has NIL Unsecured Loan Creditors as on 31st March, 2025.

(Certificate issued by Chartered Accountant certifying the list of Unsecured Loan Creditors as on 31st March, 2025 is at Annexure 138 of the Application)

d) The Applicant Company 10/Amalgamating Company 2 has 41 (Forty one) Unsecured Trade Creditors amounting to Rs.54,62,991/- as on 31st March, 2025.

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(Certificate issued by Chartered Accountant certifying the list of Secured Creditors as on 31st March, 2025 is at Annexure 139 of the Application)

5) The Applicant Company 10/Amalgamating Company 2 was incorporated for carrying on the business as set out in the, main objects, inter alia, given below:

a) To carry on the business of research and manufacturing of all kinds of chemicals, synthetic chemicals, elements, chemical compounds, biological, bacteriological, biochemicals, therapeutic, and pharmaceutical products, as well as medicinal formulations and other related preparations, in India or elsewhere.

b) To engage in the sale or other commercial transactions involving formulas and formulations for the manufacture of pharmaceutical drugs and medicines. This includes injections, capsules, lotions, patent and proprietary medicines, common medicinal preparations, elixirs, drops, tonics, liquid drugs, injections, tablets, lotions, ointments, antibiotics, hormones, liver extracts, and pharmaceutical products in both biological and non-biological forms. It also covers tranquilizers, vitamins, tonic preparations, medicated ointments, hormone preparations, ayurvedic products, medicated powders, pre-packed drugs, analgesics, antipyretic preparations, anti-diarrheal preparations, anti-cholinergic preparations, anti-asthmatic preparations, ophthalmic lotions and ointments, and all other drug-related products as defined under the Drugs Act and Rules.

c) To manufacture antibiotics, alkaloids, drug extracts, and other preparations useful for human and veterinary use. This also includes pesticides and plant protection products against pathogenic bacteria, fungi, protozoa, viruses, and other microorganisms, using chemical, physical, fermentation, bacteriological, or other methods, either independently, in collaboration with others, or under license.

d) To operate as manufacturers, producers, formulators, exporters, sellers, importers, distributors, merchants, traders, and dealers in proprietary medicines, common medical preparations, drugs, chemicals, allied solvents, dyes, vitamin preparations, elixirs, drops, tonics, liquid drugs

and medicines, injections, tablets, capsules, lotions, and ointments in India or elsewhere.

(Copy of Memorandum of Association and Articles of Association of the Applicant Company 10/Amalgamating Company 2 are at Annexure 47 of the Application).

6) It is submitted that a list of the present Board of Directors of the Applicant Company 10/Amalgamating Company 2 is at **Annexure 48 of the Application.**

7) It is submitted that a copy of Audited Financial Statements of the Applicant Company 10/Amalgamating Company 2 as on 31st March, 2024 is at **Annexure 49 of the Application**.

8) It is submitted that the Supplementary Accounting Statement (Unaudited) up to 31st December, 2024 of the Applicant Company 10/Amalgamating Company 2 is at **Annexure 50 of the Application.**

IV. Jurisdiction & Limitation :

The Applicant Companies declare that the subject matter of the Application is within the jurisdiction of NCLT, Hyderabad, as the registered offices of the Applicant Companies are situated in the state of Telangana. The Applicant Companies also submitted that there is no limitation period prescribed for filing the Application under Section 230 to 232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

V. The facts, benefits and objects of the Applicant Companies are given in Pages Nos.92 to 105 of the Application. The same are detailed in the table given table.

S.No.	Particulars	Annexure Nos./Page Nos of the Application
1	Board Resolutions passed by the Applicant Companies approving the Composite Scheme	51, 52, 53, 54, 55,56,57, 58 and 60 respectively
2	e-form MGT-14 and e-Receipt	61, 62, 63, 64, 65, 66, 67, 68, 69 and 70
3	Observation letter issued by BSE and NSE	71, 72
4	Benefits of the Composite Scheme	Page Nos.94 to 99
5	Objects of the Applicant Companies	Page Nos.100 to 105

VI. It is submitted in page Nos.132 to 134 of the Application, that all assets and liabilities of the Transferor Company 1 to Transferor Company 5 would stand transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company 1, all the assets and liabilities of the Transferor Company 6 would stand transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company 2, all the assets and liabilities of the Transferee Company 2/Transferor Company 7 would stand transferred to and vested in or be deemed to have been transferred to and vested in with Transferee Company 1/Amalgamating Company 1 and all the assets and liabilities of the Amalgamating Companies would be transferred to and vested in or be deemed to have been transferred to and vested in favour of Amalgamated Company. Further, the proposed Scheme shall not, in any way, directly or indirectly, affect the rights and interests of the Shareholders/ Creditors of the Applicant Companies as given below:

i. <u>For amalgamation of the Transferor Companies with Transferee Company 1</u>:

Since the Transferor Companies are direct and indirectly wholly owned subsidiaries of the Transferee Company 1, and the Transferee Company 1, being the Holding Company, cannot issue or allot any shares to itself, no shares whatsoever shall be issued by the Transferee Company 1 in consideration of the amalgamation. Accordingly, all such shares of the Transferor Companies held directly or indirectly by the Transferee Company 1 along with its nominees and the investment of the Transferee Company 1 in such shares as appearing in the books of the Transferee Company 1 shall stand cancelled upon Part III of the Scheme becoming effective without issue or allotment of new shares in lieu of shares of the Transferor Companies.

ii. <u>For Amalgamation of the Transferor Company 6 with Transferee Company 2:</u>

Since the Transferor Company 6 is a wholly owned subsidiary of the Transferee Company 2, and the Transferee Company 2, being the holding company, cannot issue or allot any shares to itself, no shares whatsoever shall be issued by the Transferee Company 2 in consideration of the amalgamation. Accordingly, all such shares of the

Transferor Company 6 held by the Transferee Company 2 along with its nominees and the investment of the Transferee Company 2 in such shares as appearing in the books of the Transferee Company 2 shall stand cancelled upon Part IV of the Scheme becoming effective without issue or allotment of new shares in lieu of shares of the Transferor Company 6.

iii. <u>For Amalgamation of the Transferor Company 7 with Amalgamating Company 1:</u>

Upon Part V of the Scheme becoming effective and in consideration of the amalgamation of the Transferor Company 7 into the Transferee Company 1, the Transferee Company 1 shall, without any further application, act or deed, issue and allot to the Eligible Shareholders 1 (as defined in the Scheme) in the following ratio:

"47 (Forty-Seven) equity shares of the Transferee Company 1, credited as fully paid-up equity shares of the face value of INR 10 (Rupees Ten only) each, for every 1 (One) fully paid-up equity shares of INR 10 (Rupees Ten only) each held by such member in the Transferor Company 7" ("Share Exchange Ratio 1").

VII. (a) <u>CONSIDERATION FOR EQUITY SHARES:</u>

<u>For the amalgamation of the Amalgamating Companies with the Amalgamated Company</u>:

Upon Part VI of the Scheme becoming effective and in consideration of the amalgamation of the Amalgamating Company 1 into the Amalgamated Company, the Amalgamated Company shall, without any further application, act or deed, issue and allot to the Eligible Shareholders 2 (as defined in the Scheme) in the following ratio:

56 (Fifty-Six) equity shares of the Amalgamated Company, credited as fully paid-up equity shares of the face value of INR 2 (Rupees Two only) each, for every 100 (One Hundred) fully paid-up equity shares of INR 10 (Rupees Ten only) each held by such member in the Amalgamating Company 1 ("Share Exchange Ratio 2").

(b) <u>CONSIDERATION FOR WARRANTS:</u>

Additionally, upon Part VI of the Scheme becoming effective and in consideration of the amalgamation of the Amalgamating Company 1 into the Amalgamated Company, the Amalgamated Company shall pursuant to

this Scheme, and as an integral part hereof, without any further application, act or deed, issue and allot, in demat form, to the Warrant Holders (as defined in the Scheme) in the following ratio:

> ***"56 (Fifty-Six) share warrants of the Amalgamated Company (at the Warrant Price (defined below) for every 100 (One Hundred) share warrants of the Amalgamating Company 1." ("Warrant Exchange Ratio").***

The "relevant date" for the allotment of Amalgamated Company Warrants (as defined in the Scheme) is the date on which the Board of the Amalgamated Company approves the Scheme, which is in accordance with the circular issued by SEBI dated 23 March, 2017, bearing reference no. CFD/DIL3/CIR/2017/26 ("SEBI Preferential Allotment Circular") and the price at which the Amalgamated Company Warrants shall be issued has been determined in accordance with the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2018 and the SEBI Preferential Allotment Circular ("Warrant Price") and is **Rs.181.94** per Amalgamated Company Warrant.

(Copy of Valuation Report obtained from the Registered Valuer in connection with determination of share exchange ratio for the purpose of the Scheme is at Annexure 140 of the Application)

VIII. <u>ACCOUNTING STANDARDS</u>:

It is submitted that a Certificate from the Statutory Auditors of the all the Applicant Companies have been obtained to the effect that accounting treatment proposed in the Scheme is in conformity with Accounting Standard as prescribed under Section 133 of the Companies Act, 2013.

(Certificates of accounting treatment proposed in the Scheme are at Annexures 141, 142, 143, 144, 145, 146, 147, 148, 149 and 150 respectively of the Application).

IX. It is submitted that there are no investigation proceedings pending against the Applicant Companies under the Companies Act, 1956, or any other provisions of the Companies Act, 1956 or the Companies Act, 2013 and/or no case pending against Applicant Companies under the Insolvency and Bankruptcy Code, 2016.

(Affidavit confirming the same from the Applicant Companies are at Annexures 151, 152, 153, 154, 155, 156, 157, 158, 159 and 160 respectively of the Application).

X. It is submitted that details of the ongoing adjudication and recovery proceedings, prosecution initiated and all other enforcement actions taken, if any, against the Applicant Company 1/Amalgamated Company, its promoters and directors are at **Annexure 161 of the Application.**

XI. It is submitted that as per Section 230(2)(b) of the Act, the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 declares that it shall cancel its existing shares which are partly paid-up and thus, the reduction in the Share Capital of the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 is an integral part of the Scheme itself, without having to separately follow the provisions of section 66 read with other applicable provisions of the Act and the orders of the Hon'ble NCLT sanctioning the Scheme shall be deemed to be an order under section 66 of the Act confirming the said Capital Reduction. Further, In lieu of such cancellation, the Applicant Company 8/Transferee Company 1/ Amalgamating Company 1 shall pay the amount paid-up on such partly paid-up equity shares to the relevant shareholders holding such partly paid-up equity shares immediately prior to the Effective Date 1, provided that the Applicant Company 8/Transferee Company 1/Amalgamating Company 1 shall be entitled to set-off for such amounts any loans or other payments due from such shareholders to Applicant Company 8/Transferee Company 1/Amalgamating Company 1.

Further, it is also declared that the Scheme being filed herein is not a Corporate Debt Restructuring (CDR) Scheme and hence a creditor's responsibility statement and other requirements under Section 230(2)(c) of the Companies Act, 2013 are not applicable to the present case.
(Affidavits confirming the same from the Applicant Companies are at Annexures 162, 163, 164, 165, 166, 167, 168, 169, 170 and 171 respectively of the Application).

XII. It is submitted that the Applicant Companies meet the thresholds prescribed under Section 5 of the Competition Act, 2002, namely the combined assets and turnover of the parties and the group post-combination exceed the financial limits specified therein. Hence, the approval of the Competition Commission of India ("CCI") under Section 6(2) of the said Act was mandatorily required. Accordingly, the Applicant Companies have

obtained CCI's approval vide order dated January, 21 2025 bearing Combination Registration No. C-2024/12/1218.
(Copy of the said order is at Annexure 172 of the Application).

XIII. It is submitted that the Applicant Companies are not governed by any specific Sectoral Regulator to whom the Application/Petition and Scheme needs to be intimated/filed before or after filing of the Company Application under section 230 of the Companies Act, 2013 with the Hon'ble Tribunal. Therefore, no notice is required to be sent to any Regulator. However, after the filing of the Petition under section 232 of the Act, notice of the Petition are to be issued to the Regional Director, South-Eastern Region, Registrar of Companies, Hyderabad, Reserve Bank of India, Income Tax Department and Competition Commission of India by the Applicant Companies and to Official Liquidator by the Transferor Companies, Transferor Company 5 and Transferor Company 6 and additionally to Bombay Stock Exchange (BSE), National Stock Exchange (NSE) and Securities and Exchange Board of India by the Applicant Company 1/Amalgamated Company.
(Affidavits of the Applicant Companies stating that the Applicant Companies are not regulated by any sectoral regulators are at Annexures 173, 174, 175, 176, 177, 178, 179, 180, 181 and 182 respectively of the Application).

XIV. It is submitted that Applicant Company 1/Amalgamated Company is a **Listed Company** and Applicant Company 2/Transferor Company 1. Applicant Company 3/Transferor Company 2, Applicant Company 4/Transferor Company 3, Applicant Company 5/Transferor Company 4, Applicant Company 6/Transferor Company 5, Applicant Company 7/Transferor Company 6, Applicant Company 8/Transferee Company 1/Amalgamating Company 1, Applicant Company 9/Transferee Company 2/Transferor Company 7 and Applicant Company 10/Amalgamating Company 2 are **Unlisted Companies**.

XV. It is submitted that no winding-up petition (including under Section 433 read with Section 434 of the Companies Act, 1956) and/or Insolvency proceedings under the Insolvency and Bankruptcy Code, 2016 have been filed/Instituted and are pending against them.

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XVI. It is submitted that the Scheme is not prejudicial to the interests of the Shareholders and Creditors of the Applicant Companies. It is further submitted that the Scheme will be beneficial to the Applicant Companies and their respective Shareholders and Creditors.

XVII. A certified copy of Authorization Letters of the Applicant Companies authorizing jointly or/and severally Mr. Sriram Parthasarathy, Practicing Company Secretary and/or Mr. Inbaraju R, Advocate at Madras High Court, Chennal to appear and represent the Applicant Companies before the Hon'ble Tribunal and Memorandum of Appearance & Vakalatnama to this effect are at **Annexures 183, 184 and 185 respectively of the Application**.

XVIII. It is submitted that the Applicant Companies will suffer irreparable loss and prejudice unless orders are made as prayed for hereunder. Further, no one will be prejudiced if orders are made and/or directions are given, as prayed for.

XIX. It is submitted that the present Company Application is bona fide and in the interest of justice.

O R D E R

1) We have heard the Learned Counsel and have seen the consent Affidavits filed by Unsecured creditors and Unsecured loan creditor of the Transferor Company. We have also seen the certificates given by the Chartered Accountant and Company Secretaries certifying the list of Equity Shareholders, Secured and Unsecured Creditors of the Applicant Companies and perused the documents.

2) We order convening of meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Applicant Companies as prayed for.

3) We appoint **Mr. Manav Gecil Thomas, Advocate** having email: **manavgecilthomas@gmail.com, Mobile Number: 9618574425** as **Chairperson** and **Mr Venka Reddy Bathina,** PCS **having email: bvrcs123@gmail.com, Mobile number: 9848673524 as Scrutinizer** for convening the meetings and directions as follows:

a) To convene the meeting of the Equity Shareholders of the Applicant Company 1, Applicant Company 8 and Applicant 9.

b) To convene the meeting of the Unsecured Trade Creditors of the Applicant Company 1, Applicant Company 2, Applicant Company 4, Applicant Company 8 and Applicant 10.

c) To dispense with the meeting of the Equity Shareholders of the Applicant Company 2 to Applicant Company 7 and Applicant 10.

d) To dispense with the meeting of the Preference Shareholders of the Applicant Company 6.

e) To dispense with the meeting of the Secured Creditors of the Applicant Company 1 to Applicant Company 3 and Applicant Company 8.

f) To dispense with the meeting of the Unsecured Loan Creditors of the Applicant Company 1, Applicant Company 6 and Applicant Company 9.

g) To issue notices of the meeting of the Equity Shareholders of the Applicant Company 1, Applicant Company 8, Applicant Company 9 and Unsecured Trade Creditors of the Applicant Company 1, Applicant Company 2, Applicant Company 4, Applicant Company 8 and Applicant Company 10. The notice of the aforesaid meetings shall be published in prominent English and Telugu Newspapers of Hyderabad Edition.

h) The Quorum for the meetings may be fixed in accordance with the the Companies Act, 2013, and the specific rules established by the National Company Law Tribunal (NCLT).

i) The Equity Shareholders, Secured and Unsecured Creditors be permitted to exercise their votes at the said meeting either in person or through proxies.

j) Notices of the said meeting may be sent through e-mail or by ordinary/speed post or courier to the Equity Shareholders, Secured and Unsecured Creditors of the Applicant Companies.

k) The advertisement may be published once in English Edition of "The Business Standard", Hyderabad Edition and once in Telugu Edition of "Nava Telangana", Hyderabad Edition.

4. The Meetings of Equity Shareholders, Unsecured Trade Creditors will be held and conducted through video conferencing/other audio-visual mode (VC/OAVM) or physically from **25th August, 2025 to 31th August, 2025.**

5. The Chairperson shall have all powers under the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016 in relation to the conduct of the meetings (s) including, deciding the procedural questions that may arise before or at any adjournment thereof or any other matter including an amendment to the Scheme or resolution, if any, proposed at the meeting by any person (s).

6. The Report along with the compliance affidavit of the Chairperson of the meeting may be submitted to this Tribunal within 10 days from the date of the said meeting.

7. The Fee fixed for Chairperson is **Rs.1,50,000/-** and **Rs.75,000/-** for Scrutinizer respectively for the above meeting.

8. Accordingly, the Company Application **C.A. (CAA) No.30/230/HDB/ 2025** is allowed and disposed of.

Sd/-
(Sanjay Puri)
Member (Technical)

Sd/-
Mohan Prasad Tiwari
Member(Judicial)

Vinod